

- (e) None of the above / More than one of the above.

67th B.P.S.C. (Pre) 2021

Ans. (c)

The Split system in Indian Administration deals with policy-making and implementation. In this, the secretariat makes the policy while the implementation is done by the concerned bodies/agency.

13. Which of the following is a parliamentary committee relating to delegation of power to make rules and regulations of the executive?

- (a) Committee on Executive legislation
- (b) Committee on subordinate legislation
- (c) Committee on Administrative legislation
- (d) Committee on Delegated legislation
- (e) None of the above/more than one of the above

67th B.P.S.C. (Pre) 2021

Ans. (b)

The committee on subordinate legislation of parliament is a 15 member standing committee. This committee reports to the parliament on the legislation delegated to the executive.

14. By passing, 'Triple Talaq Law' recently, the Parliament of India endorsed which year's ruling of the Supreme Court of India that had made Triple Talaq (Talaq-e-Biddat) as unconstitutional?

- (a) 2011
- (b) 2013
- (c) 2015
- (d) 2017
- (e) None of the above/More than one of the above

65th B.P.S.C. (Pre) 2019

Ans. (d)

The Supreme Court in Shayara Bano case (2017) had declared the Practice of Triple Talaq (Talaq-e-biddat) as unconstitutional. It is important to mention here that the Triple Talaq was held to violated of Article in (the right to equality).

The Supreme Court

1. Consider the following statements about the collegium system :

- 1. The Supreme Court collegium is a five-member body, which is headed by the incumbent Chief Justice of India (CJI) and comprises four other seniormost Judges of the Court at that time.
- 2. The Parliament by law has evolved the collegium system.
- 3. The Judges of the Supreme Court and High Courts are appointed only through the collegium system.

4. The collegium system was introduced in the year 1993 by Justice P. N. Bhagwati in the landmark First Judges Case.

Which of the above statements is/are correct?

- (a) Only 1
- (b) 1 and 2
- (c) 3 and 4
- (d) 1 and 3

69th B.P.S.C. (Pre) 2023

Ans. (d)

The Chief Justice of India is one of the five senior judges that make up the Supreme Court's Collegium. They will take into consideration the promotion of judges of the Supreme Court, as well as the promotion of judges of high courts to the position of chief justice. When there is a disagreement, the majority opinion will take precedence. The collegium approach emerged because the Indian Constitution requires consultation with the Chief Justice of India before any appointment to the judiciary. Significantly, Parliament did not establish this system. Initially, After the Second Judges Case the collegium system comprised the Chief Justice of India and the two senior-most judges of the Supreme Court. In this case Hon'ble Supreme Court of India ruled that "consultation" means concurrence, binding the President to the Chief Justice's consultations.

2. The Supreme Court is a:

- (a) Federal court
- (b) Protector of human rights
- (c) Final interpreter of the Constitution
- (d) Civil court
- (e) None of the above/More than one of the above

67th B.P.S.C. (Re-Exam) (Pre) 2021

Ans. (c)

The Supreme Court of India is the final interpreter of the Constitution. It is also called the guardian of the Constitution. Article 124 of the Constitution provides establishment and Constitution of Supreme Court. The Supreme Court consists of a Chief Justice and other judges as may be prescribed by law from time to time.

3. Which of the following is concerned with the Supreme Court of India?

- (a) Collegium system
- (b) Appellate jurisdiction
- (c) Original jurisdiction
- (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (d)

As for the Supreme Court is concerned Collegium system, Appellate jurisdiction and original jurisdiction are related to the apex court. Significantly, collegiums system is the system of appointment and transfer of judges that has evolved through judgments of the Supreme Court, and not by an Act of Parliament or by a provision of the Constitution. Except this, the Supreme Court is the highest Court of Appeal of all courts. It is important to mention here that as a Federal court, the Supreme Court decides disputes between different units of the Indian Federation. Option (d) is correct answer.

4. In which case(s) did the Supreme Court of India give for the first time the doctrine of 'basic structure' of the Constitution?

- (a) Golaknath vs. State of Punjab
- (b) Kesavananda Bharati vs. State of Kerala
- (c) Minerva Mills vs. Union of India
- (d) Both (A) and (B)

69th B.P.S.C. (Pre) 2023

Ans. (b)

The Supreme Court of India examined the concept of the "Basic structure" of the constitution for the first time in Kesavananda Bharti vs. State of Kerala in 1973. Significantly, the Supreme Court reversed its decision in the Golak Nath case in this instance. It declared that Parliament has the authority to restrict or eliminate any of the Fundamental Rights and confirmed the legality of the 24th Constitution Amendment Act. It also established a new theory regarding the "basic structure" or "basic features" of the Constitution. It decided that Parliament cannot change the "basic structure" of the Constitution using its constituent power under Article 368. This implies that a Fundamental Right that is a component of the Constitution's "basic structure" cannot be restricted or eliminated by the Parliament.

5. The sanctioned strength of Supreme Court of India is—

- (a) 24
- (b) 20
- (c) 18
- (d) 9

38th B.P.S.C. (Pre) 1992

Ans. (*)

The Supreme Court of India was established according to Part V, Chapter IV, Article 124 of the Constitution of India. SC is the highest judicial forum and the final Court of Appeal. Establishment of the Supreme Court of India, its composition and jurisdiction has been laid down in Article 124 to 147 of the Indian Constitution. Initially, during the 1950s the Supreme

Court consisted of a Chief Justice and seven Judges. In 1956, the number rose to eleven, and it kept rising to fourteen, eighteen, twenty-six and thirty-one including the Chief Justice in 1960, 1978, 1986 and 2008 respectively. It is noteworthy that the Supreme Court (Number of Judges) Amendment Act, 2019 has increased the number of judges in Supreme Court from 31 (30+1) to 34 (33+1). Currently there are total 32 judges in the Supreme Court including Chief Justice.

6. Judicial process in India is based on -

- (a) The Constitution
- (b) The due process of routine law
- (c) Conventions
- (d) The procedure established by law
- (e) None of the above/more than one of the above

67th B.P.S.C. (Pre) 2021

Ans. (e)

The correct answer is more than one of the above significantly, Judiciary is a branch of the government. India has a single integrated judicial system. Chapter IV under Part V of the Constitution provides about Union Judiciary. In the Indian Judicial system there are various judicial principles which developed as per the interpretation held by the judiciary. So one can say that the proceeding of judiciary is based on various kind of constitutional and legal perspective.

7. Supreme Court in India was established-

- (a) By an Act of Parliament in 1950
- (b) Under Indian Independence Act, 1947
- (c) Under Indian Government Act, 1953
- (d) By the Indian Constitution

42th B.P.S.C. (Pre) 1997

Ans. (d)

Supreme Court of India came into existence on 26th January, 1950. The Supreme Court of India was inaugurated on 28th January, 1950. It succeeded the Federal court of India established under the Government of India Act, 1935.

8. Of the following statements, which one is not correct?

- (a) Supreme Court was constituted in 1950.
- (b) Supreme Court is the highest Court of appeal in the country.
- (c) Supreme Court can hear from any High Court/ Tribunals except Court-martial.
- (d) Supreme Court can hear from any High Court/ Tribunals as well as from Court-martial.

53th to 55th B.P.S.C. (Pre) 2011

Ans. (c)